

House File 330

H-1018

1 Amend House File 330 as follows:

2 1. Page 3, after line 7 by inserting:

3 <Sec. _____. NEW SECTION. **514C.28A Autism spectrum disorder**
4 **coverage — consumer-directed attendant care services.**

5 1. Notwithstanding the uniformity of treatment requirements
6 of section 514C.6, a policy, contract, or plan providing for
7 third-party payment or prepayment of health, medical, and
8 surgical coverage benefits that provide coverage benefits
9 for autism spectrum disorder under section 514C.22, section
10 514C.28, or section 514C.31 shall provide benefits for
11 consumer-directed attendant care services for individuals with
12 autism spectrum disorder.

13 2. For purposes of this section, "*consumer-directed*
14 *attendant care services*" means service activities performed by a
15 person to help a covered person with self-care tasks which the
16 covered person would typically do independently if the covered
17 person were otherwise able.

18 3. *a.* Covered service activities are limited to the
19 nonskilled activities listed under 441 IAC 78.41(8)"f" and the
20 skilled activities listed under 441 IAC 78.41(8)"g."

21 *b.* Covered service activities must be essential to the
22 health, safety, and welfare of the covered person.

23 4. The commissioner shall adopt rules pursuant to chapter
24 17A to implement and administer this section.>

25 2. Page 4, after line 7 by inserting:

26 <3. The section of this Act enacting section 514C.28A
27 applies to third-party payment provider policies, contracts,
28 and plans as specified in section 514C.28A that are delivered,
29 issued for delivery, continued, or renewed in this state on or
30 after January 1, 2026.>

31 3. Page 4, line 8, by striking <3.> and inserting <4.>

32 4. By renumbering as necessary.

R. JOHNSON of Polk